A Walmart delivery drone, shot with a 9mm on a mock delivery in Clermont

In June 2024 a 72-year-old man in Clermont, Florida, who believed drones were surveilling him, shot a Walmart delivery drone with a 9mm handgun as it came down to its own crew on a mock delivery; told what it cost, he said that if he had to pay he wanted the drone, and he later paid $5,000 under a pretrial deal.



By the Clerk · 26 June 2024 · 4 min read

CASE: BAS-0021
SUBJECT: A 72-year-old homeowner in Clermont, Florida
OBJECT: A DroneUp delivery drone flying a mock delivery for Walmart
DATE: 26 June 2024
PLACE: Clermont, Florida
FILED: 20 October 2026
GRADE: HARM · INDIVIDUAL

Facts

DroneUp, a Virginia company Walmart partly owns, flies drone deliveries for Walmart in Florida. On Wednesday 26 June 2024 a two-man DroneUp crew was in The Overlook at Lake Louisa, a neighborhood of Clermont, campaigning for the company, according to the arrest affidavit News 6 quotes. The campaign included a mock delivery to the crew themselves, who stood in a cul-de-sac to receive it.

More on why a robot with no AI in it is still filed.

The drone arrived at about 230 feet and was descending through about 75 when one of the crew heard what sounded like a gunshot, the affidavit states. FreightWaves reports that a crew member saw a man point a handgun at it. The crew drove back to the Walmart on U.S. 27 and Johns Lake Road, and the drone flew back there too. They found a bullet hole in its payload system, and deputies noted metal shavings

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consistent with a bullet fragmenting. The crew put the damage at $2,500 and said the drone would be out of service for some time.

A Lake County deputy went to the house and asked the owner, a 72-year-old man, whether he had had any incident with a drone. He said he had: he was working on his pool pump when a drone flew over his house, so he fetched his 9mm handgun from his gun safe and shot at it. He told the deputy he had seen drones fly over his house before and believed they were surveilling him. He had complained about drones to his homeowners' association, Fortune reports, but never to the police.

The deputy says he reacted with disbelief on hearing it was a Walmart drone. Told the damage came to $10,000, the figure the deputy had been given at the time, he answered that if he had to pay $10,000 he wanted the drone as his personal property. The deputy told him the round had passed over several other houses, and he acknowledged that what he had done was reckless; when deputies arrived, the affidavit notes, a small child was playing in the cul-de-sac. Waiting for transport, he called out to a neighbor that he was going to jail for shooting a drone. The sources print his name; this record does not.

He was charged with shooting or throwing a deadly missile into a dwelling, vessel or vehicle, which Fox 13 and Fortune give as shooting at an aircraft, and firing at an aircraft is a felony in Florida, FreightWaves notes; with criminal mischief over $1,000; and with discharging a firearm in public or on residential property. He was released the next day on a $13,500 bond.

On 27 November 2024, Futurism reports, he agreed to a restitution order. He entered a pretrial intervention program, in exchange for the charges being dismissed later, DroneDJ reports: $5,000 in restitution, 25 hours of community service, and no new charges for six months. DroneDJ says the money went to Walmart, Futurism says to the drone company, and that he has paid it. No source read for this record reports the charges dismissed.

Statements

The man, to deputies on the body-camera video, as Whiskey Riff quotes it: "They say I hit it so I must be a good shot." DroneDJ prints the second half alone.

His lawyer, Scott Herman, to Fortune: he disagrees with the affidavit's account. The drone hovered directly above his client's property for an extended time, at low altitude, with nothing on it to say it was Walmart's, and further evidence would show his client acted "legally and lawfully on his property." Of the restitution, the lawyer called it an "admission of wrongdoing" but not a guilty plea, by Futurism's account, and an acknowledgment of responsibility for the damage rather than an admission of guilt, by DroneDJ's.

DroneUp's crew, as DroneDJ reports them: the drone flew at legal altitudes and was not recording video of the houses below. One of them told the deputy, Fortune reports, that the company may fly it because it has the Federal Aviation Administration's approval.

Walmart told FreightWaves it was aware of the incident and referred questions to the sheriff's office.

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For the record

The man shot the drone because he believed drones were watching him. This one was flying to be watched: a mock delivery, to two men standing in his cul-de-sac to attract the neighborhood's business and interest.

Told what it would cost, he asked for the drone in exchange. He paid $5,000 in the end, twice the crew's estimate of the damage and half the deputy's, and no source reports that the drone changed hands.

Mitigating circumstances

He did not know whose drone it was, and nothing on it, by his lawyer's account, said so; what he believed he was firing at was a device spying on his house, after earlier drones he had already complained about. His lawyer disputes the affidavit's account, and the case is to end in a dismissal rather than a conviction. He told deputies at once what he had done, and conceded it was reckless. The drone made it back to the store.



SOURCES

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3. Caleb Revill, Florida man arrested on charges of shooting Walmart delivery drone (archived), FreightWaves, 1 July 2024
4. Sasha Rogelberg, Walmart's latest challenge with its drone delivery system is gun owners shooting packages out of the air (archived), Fortune, 3 July 2024
5. Quinn Eaton, Florida Man Arrested For Shooting Walmart Delivery Drone: "I Must Be A Good Shot" (archived), Whiskey Riff, 3 July 2024
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